

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

Writ Petition No. 46764 of 2025.

Muhammad Amjad Aziz & another. Vs. Full Board No.1, Board of Revenue
Punjab & 06 others.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge, and that of parties of counsel, where necessary.
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01) **12.08.2025.** Mr. Muhammad Shahzad Shaukat, Advocate for the
petitioners.
Mr. Ahsan Rasool Chatha, A.A.G.

This Constitutional Petition, filed in terms of Article 199 of the Constitution of Islamic Republic of Pakistan (the “**Constitution**”), lays a challenge to the order dated 05.08.2025 (“**Impugned Order**”). The Impugned Order has been passed by the Full Board-I, Board of Revenue Punjab (“**Respondent No.1**”) whereby, the purported allotment of land measuring 704-K 5-M in Mauza Gohawa Tehsil Lahore Cantt, Distrit Lahore (the “**Property**”) in favour of Dil Bahadur Khan, allegedly vide Mutation No. 508, dated 18.12.1973 (the “**First Mutation**”) and subsequent transfer of the Property in favour of the petitioners through Sale Deed dated 04.06.1975 (the “**Sale Deed**”)¹ and Mutation No. 591, dated 27.10.1979 (“**Petitioners’ Mutation**”) was declared *void ab-initio* having no legal effect on the ownership of the Provincial Government. By virtue of the Impugned Order, the Deputy Commissioner, Lahore has been directed to take legal action for resuming the

¹ The date of Sale Deed is reflected from its last page as the Petitioners, for the reasons best known to them, avoided supplying the relevant pages of the Sale Deed, which pages contain necessary details viz a registered document, including but not limited to, the details in the form of process undertaken by the Registrar, documents number, volume number etc. of a registered instrument.

possession of the valuable Property from the illegal occupants.

2. Arguments heard, available record perused.

3. Briefly, the facts which led to the filing of the instant Constitutional Petition are that on the basis of an alleged settlement claim of one Dil Bahadur Khan, the Property was transferred in his favour *vide* the First Mutation. It is of note that the only available residential address of Dil Bahadur Khan is that of Karachi, the entitlement certificate against alleged settlement claim was ostensibly issued from Peshawar and the Property was allegedly allotted in Lahore; as per available record and reports from the revenue field staff, neither the First Mutation nor its record has seen the daylight. Although, the Petitioners have placed on record an uncertified copy of the First Mutation, however, the checkered history of this case reflects that the Petitioners, or their predecessors, as the case may be, have been making their best to stall all possible proceedings or efforts leading to final verification of existence, genuineness, veracity and authenticity of the First Mutation. Since all such details, relating to admitted judicial record and orders, are reproduced in the Impugned Order, thus I don't need to overwhelm this order by restating those details again. Ironically, the alleged claimant/allottee *i.e.* Dil Bahadur Khan remained non-existent throughout; he never came forward to prove even his mere existence nor he or his attorney, who allegedly executed Sale Deed, was produced before any forum or authority in this prolonged litigation viz the Property; which fact is germane to the issue in hand as his very existence remained a question from the very inception of this protracted litigation.

4. The Property rights claimed by the Petitioners', if any, hinges upon the Sale Deed, which Sale Deed is claimed to have been executed through some attorney of Dil Bahadur Khan in favour of the petitioners/their predecessors on 04.06.1975 and on the basis thereof, the Petitioners' Mutation was sanctioned. On 15.05.1980, Hakim Ali etc. filed an application before the Assistant Commissioner, Sadar Lahore, calling into question entries in the revenue record in favour of Dil Bahadur Khan, as well as, in favour of the petitioners and on the said application, proceedings were conducted by the Assistant Commissioner, Sadar Lahore, however, the petitioners filed Writ Petition No. 194-R/1981 before this Court which was disposed of *vide* order dated 25.04.1981 in the following terms:

“In this view of the matter the contention of Assistant Commissioner that the claim is forged is not correct. The question whether allotment was anti-dated, may, however, be looked into. In case it is found that it was allotted any time before 1st July 1974, the Assistant Commissioner shall have no jurisdiction to deal with the matter. This petition with this observation shall stand disposed of.”

5. Against the aforementioned order, Civil Appeal No. 282 of 1988 was filed by the department which was allowed *vide* order dated 16.05.1990 by the Supreme Court of Pakistan and the matter was remanded in the following terms:

“After hearing both the learned counsel while being conscious that the normal rules and practice of the High Court in dealing with the Writ Petitions are not in strict sense applicable to the disposal of the Writ Petitions arising out of the settlement cases yet the fact remains that the learned Judge in the High Court decided complicated questions of law and fact by the use of the expression “stand

disposed of” without proper judgment and decision thereof. There is also grievance about lack of opportunity of hearing. Keeping all these facts and circumstances in view it is not possible to uphold the impugned order. We, accordingly, allow this appeal, set aside the same and remand the case to the High Court for fresh decision of the Writ Petition filed by the respondents’ side. It shall be deemed to be pending in motion therein.”

6. In post-remand proceedings, the petitioners of W.P No. 194-R/1981 withdrew their Writ Petition on 24.01.2001, however, on the death of the original applicants, legal heir of one of the applicants, namely, Sher Muhammad pursued the matter but Member (J-I)/ Notified Officer Board of Revenue, Punjab, vide his order dated 26.06.2007, dismissed the application of Sher Muhammad. Relevant part of the order is reproduced hereunder:

“3. The legal position is very clear that under section 2 of Act XIV of 1975 this court can only assume jurisdiction either the case was pending at the time of repeal of displaced persons (Land Settlement) Act, 1958 or the case is remanded by the High Court or Supreme Court of Pakistan. This case does not fall in either category hence this miscellaneous application is dismissed due to lack of jurisdiction.”

Sher Muhammad filed review application before the Chief Settlement Commissioner Punjab, Lahore for decision of the case who also dismissed the application of said Sher Muhammad on 14.12.2007 in the following terms:

“In this view of the matter, the order of the Member (Judicial-I)/Notified Officer, Lahore dated 26.06.2007, rejecting the application of the petitioners is legally justified. I do not have any

jurisdiction to interfere with this order. This application is dismissed.”

7. Being aggrieved, Sher Muhammad filed Writ Petition No. 97-R of 2008, which was allowed *vide* order dated 20.11.2008 and this Court, while setting aside the above-mentioned orders dated 26.06.2007 and 14.12.2007, remanded the matter to the Member Board of Revenue for decision afresh in the light of the judgment reported as “The Chief Settlement Commissioner, Lahore v. Raja Mohammad Fazil Khan and others” (PLD 1975 SC 331). Against the aforementioned order, present petitioners filed Intra Court Appeal No. 490 of 2008 which was allowed *vide* judgment dated 29.05.2014 and the order under appeal dated 20.11.2008 was set-aside and the matter was remanded to the learned Single Judge in Chamber for decision of the same afresh, however, in post-remand proceedings, Writ Petition No. 97-R/2008 was dismissed for non-prosecution *vide* order dated 12.02.2016. It is further evident from the record that pursuant to the order dated 20.11.2008, passed in Writ Petition No. 97-R/2008, proceedings before the Chief Settlement Commissioner continued in CSC Case No. 40 of 2008, however, on 04.10.2016, following order was passed:

*“While referring to the orders of Hon’ble High Court passed in ICA 490 of 2008 and writ petition No. 97-R-2008, the learned counsel for the petitioner argued that since judgment which was announced on 20.11.2008 was set aside in the ICA order therefore, no matter is now pending before any court including the court of Chief Settlement Commissioner. I have given due consideration to the facts and merits of the case and a cursory perusal reveals that the state interest of very valuable land is still involved. **Plea of the petitioner***

Sher Muhammad for withdrawing the case appears to be the result of collusion and some under hand deal with the other parties. The plea for withdrawing of case is conditionally accepted; henceforth the title of the case be changed as State Vs. Dil Bahadur etc. Fresh report from the Revenue Field staff be summoned about the status of the land measuring 704 K 5M RL-II No. 230 Mauza Gohawa dated 9.5-1972 mutation Nos. 524,526,538,539, 542,591 and 595 (copy of report of DDOR, Lahore dated 5.8.2004 be attached for reference) to ascertain the status of the value of state land. The respondents Dil Bahadur etc. (original allottee) who were party in the writ petition/ICA are directed to prove their allotment. Report about the genuineness of Claim be summoned from Central Record Office of the S&R Wing. **Notices be issued to Dil Bahadur etc.** The case to come up on 7.11.2016 for further proceedings.”

8. Against the aforementioned order, the petitioner No.1 filed Writ Petition No. 14737 of 2017, which was dismissed on 06.10.2020, however, appeal filed thereon i.e. ICA No. 58083 of 2020, was disposed of on 02.05.2023 in the following terms:

“7. In view of above consensus, this appeal is disposed of with direction to the Member (Judicial-V) Chief Settlement Commissioner, Board of Revenue, Punjab, to first advert to question of jurisdiction involved in the matter and then decide the same expeditiously and more preferably within a period of two months from the date of receipt of instant order without being influenced from the observations record in the order under appeal.”

After the aforementioned observations of this Court in ICA No. 58083 of 2020, Respondent No.1 assumed jurisdiction of the matter in terms of the amendments brought about in the *Evacuee Property and Displaced Persons Law (Repeal) Act, 1975* [the

“**Repeal Act, 1975**”] by virtue of *Evacuee Property and Displaced Persons Law (Repeal) (Amendment) Act, 2022*, [the “**(Repeal) (Amendment) Act, 2022**”] heard the matter and proceeded to decide the same through Impugned Order.

9. Since the mainstay of the grounds agitated through this petition and the submissions of the learned counsel for the petitioners is premised on the question of jurisdiction/authority of the Full Board, therefore, it is imperative to reproduce the relevant amended provisions of the **Repeal Act, 1975**, by virtue of the **(Repeal) (Amendment) Act, 2022**, which provisions clearly manifest the conferring of jurisdiction/authority exercised by Respondent No. 1/Full Board:

Full Board is defined in clause (aa) of Section 1-A of the Repeal Act, 1975

(aa) “*Full Board*” means the Full Board consisting of three Members of the Board of Revenue, constituted by the Senior Member, Board of Revenue from time to time; and ²

The Jurisdiction is conferred upon the Full Board by virtue of following sub-sections (2), (2-A) & (2-B) of Section 2 of the Repeal Act, 1975:

(2) *Subject to the provisions of this section, in relation to any matter falling under the aforesaid Acts and Regulations, all proceedings pending before any notified officer immediately before the commencement of the Evacuee Property and Displaced Persons (Repeal) (Amendment) 2022, shall stand transferred for final disposal to the Full Board, and all cases decided by the Supreme Court or the Lahore High Court after the commencement of the said Act of 2022 which would have been remanded to the notified officer shall be remanded to the Full Board* ³.

(2-A) *All properties allotted after the repeal of the Acts and Regulations mentioned in subsection (1) shall be subject to scrutiny at any time, and after observing due*

² As amended by the *Evacuee Property and Displaced Persons Laws (Repeal) (Amendment) Act, 2022 (XXI of 2022)*

³ As substituted by the *Evacuee Property and Displaced Persons Laws (Repeal) (Amendment) Act, 2022 (XXI of 2022)*

process of law, if it is found that any land or property was allotted in contravention of any law or through fraud, forgery or misrepresentation, such allotment shall be cancelled.

(2-B) All proceedings which, immediately before the commencement of the Evacuee Property and Displaced Persons Laws (Repeal) (Amendment) Act 2022 in relation to adjustment, allotment or utilization of former evacuee land against verified claims of produce index units of claimants, are pending before a notified officer shall stand abated:

Provided that such proceedings in relation to cancellation of adjustment, allotment or utilization of land made against pending claims of produce index units after 1st day of July 1974 in contravention of any law shall not stand abated and shall be decided in accordance with law.⁴

Considering the aforementioned provisions, the determining factor *qua* the existence and exercise of Jurisdiction by the full board was evidently dependent upon the question that as to whether any allotment did exist in favour Dil Bahadur Khan on the material date i.e. 1st Day of July, 1974. The Bar of Jurisdiction will certainly trigger from the existence of mutation and not from claim of having a mutation preceding 1st July 1974. The argument that mere claim of having an allotment, which predates 1st July, 1974 tends to oust the Jurisdiction of full Board is not tenable by any stretch. Such an interpretation amounts to render the very purpose and essence of the Repeal Act, 1975 as redundant and frustrated; this would mean that the every false claimant would just need a one uncertified and unverifiable allotment paper to oust the jurisdiction of the Full Board in response to any and every proceeding of verification by it. Existence or non-existence of any such allotment is a question which has to be determined for dilating upon the element of jurisdiction of the Full Board and since in this case the First Mutation is non-existent, the Full

⁴ Inserted by the Evacuee Property and Displaced Persons Laws (Repeal) (Amendment) Act, 2022 (XXI of 2022

Board/Respondent No. 1 had all the jurisdiction and authority to gauge the veracity and genuineness of the claim of the Petitioners, therefore, the challenge to its jurisdiction is not sustainable.

10. The entire edifice of the case of the petitioners, rests upon a purported Sale Deed dated 11.02.1975, allegedly executed in favour of petitioner Nos. 1 & 2 by one Dil Bahadur Khan on the basis of First Mutation, the veracity and genuineness whereof is shrouded by its non-existence and lack of verification. Be that as it may, simple perusal of the basic document which is relied upon by the petitioners *i.e.* the Sale Deed, speaks volume of the conduct and claim of the petitioners. As evident from Petitioner No.1's CNIC, his date of birth is **15.07.1975**, however, the Sale Deed in his favour is dated **11.02.1975**. Submission of learned counsel for the petitioners that the Chief Settlement Commissioner or the Board of Revenue had no authority/jurisdiction to declare the basic mutation in favour of allottee *i.e.* First Mutation (Mutation No. 508 dated 18.12.1973) and subsequent Sale Deed and Petitioners' Mutation in their favour as void and is of no legal effect, is without any substance and has no legal legs to stand upon. It is well settled by the plethora of case law, including numerous judgments of the Supreme Court of Pakistan that in the cases of fraud and misrepresentation, inherent power vests in the Settlement Authorities to verify the legality and sanctity of the allotment orders, whenever implementation is being sought by a purported allottee as the mere verification does not take away anyone's right. Reliance may be placed upon "The Chief Settlement Commissioner, Lahore v. Raja Mohammad Fazil Khan and others" (PLD 1975 SC 331). It is trite that no amount of finality or credence can be attached

to an inherently defective order procured by perpetuating fraud. Reliance is further placed on the case of *“Syed Wajihul Hassan Zaidi v. Government of the Punjab and others”* (PLD 2004 SC 801), whereby it has unequivocally been settled that:

“20.....It may be observed that, generally speaking, Settlement authorities become bereft of jurisdiction to deal, with the property after the issuance of a valid P.T.D. but this principle is subject to a rider clause that the transfer of the property must have been made within jurisdiction, by conscious application of mind and without any element of fraud or misrepresentation in obtaining the transfer of evacuee property. **In case the transfer was obtained by a person by practicing fraud, maneuvering and manipulating the facts or in connivance with the officials of the Settlement organization, the order of transfer, being void, would remain open to scrutiny by the forums concerned, and, on their failure, such orders and actions would always be subject to judicial review by Courts of law.** Likewise, blanket protection would not extend to the transfers made in violation of law, in excess of power or without jurisdiction. Once it is held that the Settlement authorities had transferred a property otherwise than in due course of law, on extraneous considerations or in gross violation of the provisions of Rehabilitation and Settlement laws, their actions can be set at naught by competent forums. The precedent cases cited at the Bar do not advance the cause of the petitioner, as the same do not have the effect of overriding the aforesaid legal position. In Anwar Hussain's case (supra), inter alia, it was held that the Settlement authorities may vary, modify or cancel the Permanent Transfer Deed issued to such a transferee, who has obtained it by means of misrepresentation or fraud. In Ali Moazzam's

case, (supra) Lahore High Court was dealing with the bar of jurisdiction in terms of sections 22 and 25 of Displaced Persons (C&R) Act 1958. In Lahore Central Co-operative Bank's case (supra) it was ruled that writ of mandamus will not be granted unless it is applied for within a reasonable time after the right of prayer has accrued. Indeed, this was a case relating to reinstatement of a Commercial Manager of a Co-operative Bank. Case reported as PLD 1982 Karachi 276 arose out of alteration and substitution of properties in transfer documents and does not appear to be relevant to the issue. In Noor Muhammad's case (supra), Lahore High Court was confronted with the question whether property consisted of a single unit or otherwise. It was held that this being a question of fact could not be gone into by High Court in writ jurisdiction. In Abdul Hauque's case (supra) the principle of law was approved because the transfer of property was quite in order and without any element of manipulation or fraud. Similar view was taken in Abdul Ghani's case (supra) while refusing leave to appeal. In Iqbal Siddiqui's case (supra), Lahore High Court was dealing with a dispute regarding transfer of property in the perspective of ejectment proceedings in writ jurisdiction. In this case, tenant, after having compromised before the Rent Controller, had moved Settlement department for cancellation of transfer of property in favour of landlord. Cases, reported as Jan Muhammad v. Additional Deputy Commissioner and Mir Allauddin v. Settlement Commissioner equally arose out of distinct and distinguishable facts having no material bearing on the question raised."

[Emphasis Supplied]

11. While dealing with question of implementation of a void order, even if the same has attained finality due to dismissal of CPLA filed against such an order, the

Supreme Court of Pakistan has not only authoritatively settled the distinction between a void and voidable order but has also held that whenever a void order is brought before a Court for implementation, the Court before whom it is brought is bound to ignore it. Reliance is placed upon the case of “Province of the Punjab through Secretary, Health Department v. Dr. S. Muhammad Zafar Bukhari” (PLD 1997 SC 351), whereby it is held that:

“8. The question of legality and efficacy of a void order as distinguished from voidable order and its annulment or disregard by treating the same as a nullity came to be considered by this Court earlier also. These questions naturally give rise to the considerations, whether the Court or Tribunal which is required to disregard the order is a Court of general or limited jurisdiction. This Court has examined different aspects of this very question in many cases and all these cases require to be examined from the particular situation prevailing in each case. **In the particular circumstances, learned Judge in the case of Muhammad Swaleh, PLD 1964 SC 97 observed "it should be remembered that if an order be a nullity, then every Court before whom it is brought is not only entitled but bound to ignore it.**

.....

This Court in the case of Muhammad Fazil v. Chief Settlement Commissioner, PLD1975 SC 331, besides pointing out the distinction between "void and voidable order" considered the question whether a tribunal of special or limited jurisdiction as distinguished from an ordinary Court of general jurisdiction has the power to recall, rescind or treat as a nullity order obtained from it or any other authority by practicing fraud. The observations made at page 340 read:---

"If an order obtained by fraud is voidable, the question then is in what kind of proceedings can it be set aside or avoided. As stated by Robinstein in 'Jurisdiction and Illegality', the validity of a decision or order can be challenged either directly by way of

proceedings specially designed by law for the purpose of having such a decision set aside, reversed or modified; or by way of collateral attack in which the Court is not asked to invalidate the disputed decision but in which the existence of this decision is relevant to the issue facing the Court. In such collateral impeachment the contention generally is that the impugned decision is a nullity in the eye of law and can be disregarded by the Court before which it is sought to be relied upon by one party' or the other."

Again in respect of collateral impeachment of a void order it was observed:

"However, in the matter of collateral impeachment of such an order, the position appears to be different. Whereas, a superior Court or a Court of general jurisdiction has the power to disregard, as nullity, an order obtained by fraud or collusion, or on the ground of want of jurisdiction in the Court or authority making it, such a power is not available to a tribunal which either acts in an administrative capacity, or enjoys only a special or limited jurisdiction in a defined sphere."

In case of Sharif Ahmed Hashmi v. Chairman, Screening Committee 1978 SCMR 367 Mr. Justice Durab Patel after noticing cases on the question whether a void order is always to be struck down observed:

"Additionally, I have to observe here that the petitioner assumed in his arguments before us that a Court always struck down a void order, regardless of the consequences of its decision. The assumption is a total fallacy, because a void order is only a type of an illegal order. It is described as void because it is so illegal that it does not exist in the eye of the law but this does not alter the fact that it was passed and by describing it as void, Courts cannot alter the fact that the order was passed. And an 'order' which has been passed can create consequences, therefore, there

cannot be a hard and fast rule that void order must always be struck down. The true position has been clarified -by Munir, C.J., with usual lucidity I say so with respect in Yousaf Ali v. Muhammad Aslam Zia PLD 1958 SC 104; where Munir, C.J., observed at page 117:

'And if on the basis of a void order subsequent orders have been passed either by the same authority or by other authorities, the whole series of such orders, together with the superstructure of rights and obligations built upon them, must, unless some statute or principle of law recognizing as legal the changed position, of the parties is in operation, fall to the ground because such orders have as little foundation as the void order on which they are founded'. "

[Emphasis Supplied]

12. While adverting to the dictum laid down in the case of the “Chittagong Chamber of Commerce and Industry v. C.S. Ltd.” (PLD 1970 SC 132), to the effect that an illegal order has to be avoided by challenging it in proper proceedings and until it is set aside, it cannot be ignored, the Hon’ble Hamoodur Rehman, C.J., in the case of “Raunaq Ali v. Chief Settlement Commissioner” (PLD 1973 SC 236) observed:

"This is no doubt correct, but it is also now well-established that where an inferior tribunal or Court has acted wholly without jurisdiction or as Rubinstein puts it in his book on 'jurisdiction and illegality' taken any action 'beyond the sphere allotted to the tribunal by law and therefore outside the area within which the law recognizes a privilege to err', then such action amounts to a 'usurpation of power unwarranted bylaw' and such an act is a nullity; that is to say, 'the result of a purported exercise of authority which has no legal effect whatsoever'. In such a case, it is well-established that a superior Court is not bound to give effect to it, particularly where the appeal is to the

latter's discretionary jurisdiction. The Courts would refuse to perpetuate, in such circumstances, something which would be patently unjust or unlawful. "

13. Likewise, while dealing with such like cases, the consistent approach of the Supreme Court leads to an ineluctable consensus that before a person can be permitted to invoke the discretionary powers of a Court, it must be shown that the order sought to be set aside had occasioned some injustice to the parties. If it does not work any injustice to any party rather it cures a manifest illegality then the extraordinary jurisdiction ought not be allowed to be invoked.⁵ Similarly, in the case of ***Begum Shamsun Nisa***⁶, it is settled that the High Court in exercise of its discretionary jurisdiction is not bound to interfere in all circumstances and it would have been proper exercise of its discretion, if it had not interfered with the order of the Chief Settlement Commissioner in that case even if it felt that the order of the Chief Settlement Commissioner whereby he rendered the order of the Settlement Commissioner as null and void, was not strictly legal.

14. The constitutional jurisdiction of this Court, as well as, of the Supreme Court of Pakistan is meant to right the wrong and cannot be invoked in favour of a party who has brought a case for determination of an alleged right, which right is cloaked in patent illegalities, fraud, misrepresentation or the same is devoid of sound legal backing. On many occasions, the Apex Court refused to intervene where the grant of relief would amount to retention of ill-gotten gains or

⁵ *"Syed Raunaq Ali etc v. Chief Settlement Commissioner and others"* (PLD 1973 SC 236).

⁶ *"Begum Shamsun Nisa v. Said Akbar Abbasi and another"* (PLD 1982 SC 413).

would lead to injustice or aiding the injustice⁷. In the instant case, the petitioners have been able to occupy and sale the valuable land, which was to be allotted to those who were entitled for such allotments owing to their sacrifice and miseries of migration in one of the world's most bloodied migration, however, the saga of allotment(s) against dubious settlement claims has accumulated to the fortunes of those, who had the means and tools to frustrate the system. The object, of exercising the extraordinary jurisdiction of the Judicial review by the superior Court(s) is to foster justice, preserve rights and to right a wrong; keeping this object in view, while exercising judicial review, a Constitutional Court may proceed in equity to set aside or annul a void judgment or enjoin enforcement by refusing to intervene in the circumstances of the case before it⁸ but such power cannot be invoked for a petitioner(s) whose hands are sullied by gross misrepresentation and fraud.

15. The upshot of the above is that since there was no lawful order of allotment in favour of Dil Bahadur Khan, who himself is a non-existent, and as such, the First Mutation i.e. No. 508 dated 18.12.1973, is of no lawful consequences, thus, as a natural corollary, all/any subsequent transactions based thereon are absolute nullity in the eye of law. The Sale Deed in favour of the Petitioners is a dubious document and thus cannot be relied upon for treating the petitioners as 'aggrieved persons' consequently, no case is made out for interference while exercising extraordinary

⁷ See "*Gul Muhammad v. Addl. Settlement Commissioner*" (1985SCMR 491); "*Nazim Ali etc. v. Mustafa Ali etc.*" (1981 SCMR 231); "*Wali Muhammad and others v. Sheikh Muhammad and others*" (PLD 1974 SC 106); "*Meraj Din v. Director, Health Services*" (1969 SCMR 4); "*Tufail Muhammad v. Muhammad Ziaullah Khan*" (PLD1965 SC 269); "*Azmat Ali v. Chief Settlement and Rehabilitation Commissioner*" (PLD1964 SC 260).

⁸ "*Mst. Mobin Fatima v. Muhammad Amin and 2 others*" (PLD 2006 SC 214), "*Secretary to the Govt. of the Punjab v. Ghulam Nabi and 3 others*" (PLD 2001 SC 415).

equitable jurisdiction of this Court under Article 199 of the Constitution; resultantly, the petition in hand is **dismissed in limine.**

(KHALID ISHAQ)
JUDGE

Approved for Reporting

(KHALID ISHAQ)
JUDGE

Announced on 12.08.2025.
Signed on 22.09.2025

**Ajmal Rana.*